

22STCV18163 22STCV18163

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Case Number: 22STCV18163 Hearing Date: July 30, 2026 Dept: 735

Anabi Oil Corporation

v. Envision WC Toy RE, LLC, et al.

Cross-Defendant Envision

WC Toy RE, LLC's Motion to Compel Further Responses to Requests for Production (Set Two) from Cross-Complainants Huy Quoc Dang dba West Covina Shell, West Covina Shell Auto Care, Inc., and D.S. Dang LLC, and Requests for Sanctions

Cross-Defendant Envision WC Toy RE, LLC moves to compel further responses to RPDs, set two, nos. 31-120 from Cross-Complainants Huy Quoc Dang dba West Covina Shell, West Covina Shell Auto Care, Inc., and D.S. Dang LLC. The parties appeared for argument on June 16, 2026. The Court consolidated the motions related to each Cross-Complainant and continued the motions to this date for hearing. The Court ordered the parties to meet and confer telephonically and for Cross-Defendant to file a supplemental declaration identifying remaining disputed issues. The motions now come on for hearing a second time.

DISCUSSION

Threshold Matters

As a threshold matter: most or all of Cross-Complainants' responses are preceded by a host of objections, then responded to subject to those objections. Cross-Complainants did not specify documents withheld subject to objection as required by Code of Civil Procedure section 2031.240 [partial response must "[i]dentify with particularity any document ... to which an objection is made").) The responses are therefore not Code-compliant, whether or not documents have been withheld.

The Court sustains or overrules the objections and grants the motion on this basis in many cases, recognizing that once the objections have been overruled, responsive documents still may not exist, etc.. After the Court's ruling on Cross-Complainants' objections, Cross-Complainants must produce any documents withheld subject to an overruled objection. If no documents have been withheld, Cross-Complainants must confirm as much via supplemental response, since their initial responses were not Code-compliant.

Cross-Complainants also purport to reserve their right to supplement their responses at a later date because "discovery is ongoing". Cross-Complainants cite no provision of the Civil Discovery Act permitting this reservation of rights, and the purported reservation of rights does not relieve Cross-Complainants of their obligation to conduct a diligent search and fully respond. Documents that were not produced in initial responses may be subject to exclusion at trial or similar sanction, notwithstanding Cross-Complainants' "reservation of rights".

Third: Cross-Defendant repeatedly employed the vague term "DOCUMENTS RELATING TO" or "DOCUMENTS RELATED TO" in each of its requests. In this sense, Cross-Complainants' vagueness objection is well-taken even where it is overruled. Where the Court overrules vagueness objections and grants the motion, in every instance the Court construes the term "DOCUMENTS" to mean "communications and/or agreements".

Finally: notwithstanding the rulings below, no objection based on attorney-client privilege or attorney work product has been overruled. If any documents have been withheld on this basis, however, Cross-Complainants are ordered either (1) to provide a privilege log or (2) state via supplemental response that production of a privilege log would impose an undue burden.

Requests in Dispute

Subject to the foregoing, the Court rules as follows on the disputed Requests and various objections.

Ruling

RFP

Nos.

Objections OVERRULED and motion GRANTED.

31, 42-44, 50-52, 53 (as narrowed), 54-60,
66-68, 70, 73, 77-80, 83-93, 96-98, 101-119 (with "DOCUMENTS" construed to
include records of payments).

Vagueness/overbreadth objection SUSTAINED and
motion DENIED.

36-41, 45-49, 61, 62-65, 69, 71-72, 74-76,
81-82, 94-95, 99-100, 120.

SANCTIONS

The Court finds Cross-Complainants
were substantially justified to object to Cross-Defendant's requests. The
numerous requests were in many cases vague or overbroad and extended over long
periods of time. The Court disapproves of Cross-Complainants' apparent failure
to participate meaningfully in meeting-and-conference efforts. That does not
change the result of the motion, which was only partly successful and required the
Court to narrow the definition of the overbroad term "DOCUMENTS RELATED TO"
throughout.

Cross-Defendant's requests for
sanctions are denied.

CONCLUSION

The motion
is granted in part and denied in part on the foregoing terms, subject to the
qualifications set forth at the outset of this ruling.

Cross-Defendant's requests for sanctions are
denied.

Cross-Defendant is ordered to give notice.